

25STCV25004 25STCV25004

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Case Number: 25STCV25004 Hearing Date: August 21, 2026 Dept: 510

No.

12 - Saeed Paul Ghafoori v. Ash Ahhour, et al.

Defendants

Ash Ashour and Ashour Yehoshua, APC's Demurrer and Motion to Strike Portions of Plaintiff's Second Amended Complaint

Demurrer

Defendants

Ash Ashour and Ashour Yehoshua, APC demur to the second, third, fifth, and sixth causes of action in Plaintiff Saeed Paul Ghafoori's second amended complaint ("SAC").

A.

Second Cause of Action: Breach of
Fiduciary Duty

"To

establish a cause of action for breach of fiduciary duty, a plaintiff must demonstrate the existence of a fiduciary relationship, breach of that duty and damages. [Citations.]" (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 182.) "An attorney owes the client a fiduciary duty 'of the highest character.' This fiduciary duty requires fee agreements and billings 'must be fair, reasonable and fully explained to the client.' [Citation.]" (Bird, Marella, Boxer & Wolpert v. Superior Court (2003) 106 Cal.App.4th 419, 430-31.)

Defendants

argue Plaintiff's breach of fiduciary duty claim is duplicative of the legal malpractice claim and thus, the demurrer should be sustained without leave to amend as to this cause of action. Any attempt to clone a legal malpractice claim in order to multiply remedies is rejected. (*Kracht v. Perrin, Gartland & Doyle* (1990) 219 Cal.App.3d 1019, 1022-1023; see also *Loube v. Loube* (1998) 64 Cal.App.4th 421, 429-431.) The Court agrees. Plaintiff's breach of fiduciary duty claim relies on the same set of facts, but frames each allegedly negligent act as a "failure to disclose" the negligent act. This framing does not create a breach of fiduciary claim distinct from professional negligence.

The demurrer as to this cause of action is sustained without leave to amend.

B.

Third Cause of Action: Refund of Attorney Fees

Plaintiff

brings a cause of action for refund of attorney fees. This is not recognized as a standalone cause of action; rather, it speaks to the kind of damages Plaintiff could potentially obtain under other legal theories, including the legal malpractice cause of action.

The

demurrer as to this cause of action is sustained without leave to amend.

C.

Sixth Cause of Action: Constructive Fraud/Concealment

Plaintiff

alleges sufficient facts for fraudulent concealment. Fraud by concealment requires: (1) the defendant concealed or suppressed a material fact; (2) defendant had a duty to disclose the fact to plaintiff; (3) defendant intentionally concealed or suppressed the fact with intent to defraud plaintiff; (4) plaintiff must have been unaware of the fact and would have acted otherwise if he had known of the concealed fact; and (5) plaintiff suffered damage as a result of the concealment. (*Boschma v. Home Loan*

Center, Inc. (2011) 198 Cal.App.4th 230, 248.)

Here,

Plaintiff alleges that Defendants failed to disclose several material facts regarding his underlying case, such as their failure to competently preserve the statute of limitations, and draft subpoenas. (SAC, ¶ 95.) Plaintiff alleges that Defendants had a duty to disclose these facts due to the attorney-client relationship. (Id., ¶ 94.) Plaintiff further alleges intentional concealment, reliance, and damages. (Id., ¶¶ 96-101.) When liberally construing the allegations in Plaintiff's favor, as the Court must do on demurrer, Plaintiff states a claim for fraudulent concealment.

The

demurrer as to this cause of action is overruled.

D.

Fifth Cause of Action: Unfair Business

Practices – Business and Professions Code section 17200

Plaintiff

alleges sufficient facts for this cause of action. Business and Professions Code section 17200 prohibits “unlawful, unfair, or fraudulent” acts, which are three separate varieties of violation. (Drum v. San Fernando Valley Bar Assn. (2010) 182 Cal.App.4th 247, 253.) Here, the Court overruled the demurrer as to Plaintiff's fraud claim. Therefore, Plaintiff can sustain a cause of action for violation of Business and Professions Code section 17200 on the basis of Defendants' alleged fraudulent acts.

The

demurrer as to this cause of action is overruled.

Motion

to Strike

Defendants

Ash Ashour and Ashour Yehoshua, APC move to strike Plaintiff's request for certain damages. Specifically, Defendants move to strike the following allegations:

1.

Prayer for restitution and injunctive

relief under Business & Professions Code § 17200

2.

Prayer for punitive and exemplary damages

(Notice of Motion to Strike, at p. 2.)

The

Court declines to strike Plaintiff's prayer for restitution and injunctive relief under Business & Professions Code section 17200. The demurrer as to this cause of action was overruled. These are available remedies under this cause of action. (See SAC, ¶ 91.) Plaintiff adequately pleads that he suffered loss of money requisite for standing. Whether Plaintiff will potentially be able to recover injunctive relief will be revealed in later stages of this case.

The

Court declines to strike the prayer for punitive damages. Courts may strike allegations related to punitive damages where the facts alleged "do not rise to the level of malice, oppression or fraud necessary" to recover punitive damages under Civil Code section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 64.) Here, Plaintiff adequately alleges that Defendants acted fraudulently by intentionally concealing facts material to the underlying litigation. (SAC, ¶ 95.) These omissions caused damages of approximately \$5,985,000. (Id., ¶ 100.) The Court cannot rule as a matter of law that this conduct was not malicious, fraudulent or oppressive.

Disposition

Defendants

Ash Ashour and Ashour Yehoshua, APC's demurrer to Plaintiff Saeed Ghafoori's second amended complaint is overruled as to the fifth and sixth causes of action. It is sustained without leave to amend as to the second and third causes of action.

Defendants

Ash Ashour and Ashour Yehoshua, APC's motion to strike portions of Plaintiff Saeed Ghafoori's second amended complaint is denied.